FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF BRONX

HSDI II BRONX, LLC

Plaintiff,

-against-

PHILLIP EQUITIES, INC., THE CITY OF NEW YORK ENVIRONMENTAL CONTROL BOARD, LUIS REYES, RICARDO REYES, VIRGINIA VERDIN,CARLOS BASILLIO, MARLENE LAROSE, MOUSTAPHA DIALLO, CARMEN PEREZ and : BALBINO RUBIO

Defendant.

Index No. 809581/2023E

MORTGAGED PROPERTY:
304 East 139th Street, Bronx, New York 10454

COUNTY: BRONX
SBL #: Block 2314, Lot 21
Sale Date: APRIL 27, 2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 2,136,485.49
2. Adjusted Judgment Amount (Upset Price): $ ~~2,514,053.78~~ $2,050,000.00
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 2,060,000.00
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ 0
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 750.00

Referee Name: Sergio Marquez, Esq. Telephone: 718-293-1000
Address: 835 Walton Ave APT 4, Bronx, NY 10451
Email: SMARQ42574@AOL.COM Signature/Date: 4/27/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Terence Gee
Address: 14436 78th Avenue
Flushing, N.Y. 11367
Telephone: 917.324.2033
Email:
Signature/Date: 4.27.26

C. To Be Completed by Purchaser

Name: Plaintiff HSDI II Bronx, LLC
Address: 550 Biltmore Way Ste 970
Coral Gables, FL 33134
Telephone: 305-722-5920
Email: ogarcia@secureddebtinvestments.com
Signature/ Date: 4/29/2026

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19